avoid such pretense and acknowledge that you are trying to create a new intersubjective reality rather than represent a preexisting objective reality.

For example, on 17 September 1787, the Constitutional Convention signed the US Constitution, which came into force in 1789. The Constitution didn't reveal any pre-existing truth about the world, but crucially it wasn't a lie, either. Rejecting Plato's recommendation, the authors of the text didn't deceive anyone about the text's origins. They didn't pretend that the text came down from heaven or that it had been inspired by some god. Rather, they acknowledged that it was an extremely creative legal fiction generated by fallible human beings.

'We the People of the United States,' says the Constitution about its own origins, 'in Order to form a more perfect Union … do ordain and establish this Constitution.' Despite the acknowledgment that it is a human-made legal fiction, the US Constitution indeed managed to form a powerful union. It has maintained for more than two centuries a surprising degree of order among many millions of people who belong to a wide range of religious, ethnic and cultural groups. The US Constitution has thus functioned like a tune that without claiming to represent anything has nevertheless made numerous people act together in order.

It is crucial to note that 'order' should not be confused with fairness or justice. The order created and maintained by the US Constitution condoned slavery, the subordination of women, the expropriation of indigenous people and extreme economic inequality. The genius of the US Constitution is that by acknowledging that it is a legal fiction created by human beings, it was able to provide mechanisms to reach agreement on amending itself and remedying its own injustices (as chapter 5 explores in greater depth). The Constitution's Article V details how people can propose and ratify such amendments, which 'shall be valid to all Intents and Purposes, as Part of this Constitution'. Less than a century after the Constitution was written, the Thirteenth Amendment abolished slavery.

In this, the US Constitution was fundamentally different from stories that denied their fictive nature and claimed divine origin, such as the Ten Commandments. Like the US Constitution, the Ten Commandments endorsed slavery. The Tenth Commandment says, 'You shall not covet your neighbour's house. You shall not covet your neighbour's wife, or his male slave or female slave' (Exodus 20:17). This implies that God is perfectly okay with people holding slaves, and objects only to the coveting of slaves